

charge negligence or nondeliberate injury, which do not rise to the level of malice. *Ibid.*

Plaintiff's factual allegations in the FAC do not support a prayer for punitive damages. Plaintiff generally alleges that she slipped and fell on a loose floor mat in Target on a rainy day. She further alleges that Defendant's response to the incident was inadequate. There are no allegations of conduct *intended* by Defendant to cause injury; of despicable conduct subjecting Plaintiff to cruel and unjust hardship in conscious disregard of her rights; or of intentional misrepresentation or concealment with intent to cause injury. Therefore, the Motion to Strike is **GRANTED**. The proposed order will be executed.

9:00 a.m. Review Hearings

CAICEDO VS. SUNBABE, LTD

CASE NUMBER: 25CV-0208229

This matter is on calendar for review regarding status of responsive pleadings. A motion to quash service of summons was filed by Defendant and set for hearing today. The motion was granted for failure to validly serve Defendant with the Summons and Complaint. The matter continued to **Monday, December 7, 2026, at 9:00 a.m. in Department 64** for status of service. No appearance is necessary on today's calendar.

EL RIO ESTATES LLC VS. CARUSO

CASE NUMBER: 26CVG-00667

This matter is on calendar for status of accounting. The Inventory and Accounting have been filed pursuant to California Civil Code section 798.61. The clerk is directed to close the file. No appearance is necessary on today's calendar.

LAKEVIEW LOAN SERVICING, LLC VS. GONZALEZ, ET AL.

CASE NUMBER: 25CV-0207895

This matter is on calendar for review regarding status of service. The Court intends to dismiss the action pursuant to an OSC re Dismissal on this morning's 8:30 a.m. calendar. Therefore, the review hearing is dropped from calendar, and no appearances are necessary.

LEWISTON COMMUNITY SERVICES DISTRICT VS. SUDA PROPERTIES, LLC, ET AL.

CASE NUMBER: 25CV-0208034

This matter is on calendar for trial setting. The Court designates this matter as a plan II case and intends to set the matter for trial no later than December 8, 2026. Neither side has posted jury fees. The parties are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to appear to provide the Court with available trial dates.

MCCAIN VS. EST OF RICHARD CARL RIPLEY, ET AL.

CASE NUMBER: 25CV-0207239

This matter is on calendar for review regarding status of service, improperly named defendants, and failure to record a notice of pendency of action. The proofs of service on file indicate that

Plaintiff in her individual capacity, is suing herself, as administrator of her parents estate. It appears to the Court that Plaintiff has named improper parties as defendants in this action, as she is seeking to quiet title as to a John Parker and Mary Parker, not as to the estates of Richard and Dolores Ripley. Additionally, it appears that Plaintiff has failed to record a Notice of Pendency of Action (lis pendens) for the subject property as required by CCP § 761.010(b). Plaintiff is ordered to appear today to discuss: the status of her case, the proper defendants to this action, and providing notice to those defendants.

MIDLAND CREDIT MANAGEMENT, INC. VS. HAM

CASE NUMBER: 25CVG-02474

This matter is on calendar for review regarding status of the case. Notice of Conditional Settlement was filed on March 2, 2026 indicating the matter would be dismissed no later than July 16, 2028. Plaintiff attempted to dismiss the action on August 13, 2026, but the request was rejected by the clerk due to defects. The matter is continued to **Monday, August 14, 2028 at 9:00 a.m. in Department 64** for status of dismissal. The Court intends to dismiss the matter without prejudice on that date per CRC 3.1385 unless good cause is presented. Any good cause must be presented at or before the hearing. No appearance is necessary on today's calendar.

REGER VS. STEIGER

CASE NUMBER: 25CV-0207850

This matter is on calendar for review regarding status of settlement and status of escrow. No status statements have been filed. Appearances are necessary on today's calendar to provide the status of this matter.

ROCKY TOP RENTALS, LLC VS. VAN NORMAN ERICKSON, ET AL.

CASE NUMBER: 25CVG-02320

This matter is on calendar for review regarding status of service. This action was filed November 6, 2025 and is still not at issue. No proof of service of summons is on file for Defendant Eli Van Norman Erickson or Mark Ludwig. Trial is set to commence October 6, 2026. An appearance is necessary on today's calendar to provide a status of service or dismissal as to these defendants.

THEKKUMTHALA VS. INTERVENTIONAL RADIATION ONCOLOGY OF CALIFORNIA, ET AL., ET AL.

CASE NUMBER: 25CV-0208996

This matter is on calendar for review regarding status of arbitration. The matter was ordered to arbitration on December 11, 2025. No status statements have been filed. Appearances are necessary today to provide a status.

VELOCITY INVESTMENTS LLC VS. VELA, JR

CASE NUMBER: 25CV-0208785

This matter is on calendar for review regarding status of default judgment. Default judgment was entered on July 23, 2026. The clerk is directed to close the file. Today's review hearing is dropped from calendar, and no appearances are necessary.